

BEFORE THE STATE GRIEVANCE BOARD

STATE OF COLORADO

Case No. RG GB DLIUD

STIPULATION AND ORDER

IN THE MATTER OF THE DISCIPLINARY PROCEEDING AGAINST THE
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF
COLORADO OF MICHAEL R. GISMONDI, M.A., LPC, LICENSE NO. 567,

IT IS HEREBY STIPULATED and agreed by and between the Colorado State Grievance Board ("Board") and Michael R. Gismondi, M.A., LPC ("respondent"), as follows:

1. The Board has jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.

2. The State Board of Licensed Professional Counselor Examiners granted respondent a license to practice as a licensed professional counselor in Colorado on October 17, 1992. Respondent was issued license number 567. Respondent has been a licensed professional counselor since that date and is so licensed at this time.

3. On or about June 21, 1995 the Board received a complaint against respondent alleging practice below generally accepted standards.

4. Following a review of the complaint and pursuant to its authority under C.R.S. §12-43-705(1), the Board determined that reasonable grounds existed to initiate disciplinary action against respondent's Colorado license to practice professional counseling and his practice of psychotherapy.

5. The Board, therefore, authorized its legal counsel, the Colorado Attorney General, to initiate disciplinary proceedings against respondent's license to practice professional counseling and his practice of psychotherapy.

6. Respondent understands he has the right to a formal disciplinary hearing, pursuant to C.R.S. §12-43-705, as to the allegations of the complaint against his practice of professional counseling and psychotherapy. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Board of its burden of proving the facts and conduct complained of; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses.

Respondent understands that, pursuant to C.R.S. §12-43-705(5), he has the right to appeal to the Colorado Court of Appeals the Board's final order containing disciplinary action. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of the final Board order entered pursuant to this stipulation.

7. The Board, by this stipulation and order, hereby orders that respondent's practice of professional counseling and psychotherapy shall be on probation for a period of at least three years commencing on the date this stipulation and order is fully executed or upon approval of respondent's practice monitor, whichever is later. During the period of probation respondent can practice professional counseling and psychotherapy only if he complies with all conditions of the probation and has a practice monitor in place.

8. The conditions of respondent's probation are:

(a) Respondent will strictly observe the prohibitions set forth in C.R.S. §12-43-704(1) and assure that he does not engage in any activities that are prohibited activities or that fall below generally accepted standards of practice.

(b) Respondent's practice of psychotherapy must be monitored and evaluated by a Board-approved monitor ("practice monitor"), who evaluates respondent, monitors respondent and reports in writing to the Board in accordance with this order.

(i) At the commencement of the practice monitoring relationship the practice monitor will evaluate all aspects of respondent's psychotherapy practice and his qualifications and ability to practice professional counseling and psychotherapy in the state of Colorado and determine if respondent can practice professional counseling and psychotherapy in accordance with generally accepted standards, with skill and safety for his clients, and if his practice is appropriate to his qualifications. This evaluation may include a mental status evaluation if the evaluator deems it appropriate. Such mental status evaluation shall be conducted in accordance with paragraph 8d below.

(ii) Should the practice monitor determine that respondent can not practice professional counseling and psychotherapy or some portion of his practice of professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients or does not have the appropriate qualifications for his practice or some portion of his practice of professional counseling and psychotherapy, respondent will discontinue any portion of his professional counseling and psychotherapy practice that he is not

qualified, competent or safe to conduct. Based on findings and recommendations of the practice monitor, the Board shall determine necessary actions that respondent must take and conditions he must meet so that he can be considered qualified, competent and safe to practice professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety for his clients in any areas the practice monitor finds he is not qualified, competent or safe to practice. Once respondent satisfies the Board that he has taken the appropriate actions and met the conditions so that he is qualified, competent, and safe to fully practice professional counseling and psychotherapy, he may resume the full practice of professional counseling and psychotherapy.

(iii) The practice monitoring must consist of individual face-to-face contact that occurs at least once a week for at least one hour or such longer time as the practice monitor deems necessary. During the practice monitor meetings, respondent and his practice monitor must review and discuss each of respondent's active cases at least once every month to allow the practice monitor to determine whether respondent is practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice and with skill and safety to his clients.

(iv) The practice monitor is authorized to examine and shall examine such client records and case files as the practice monitor or the Board deems appropriate to assure that respondent is practicing professional counseling and psychotherapy in accordance with generally-accepted standards of practice and with reasonable skill and safety for his clients.

(v) The practice monitor must report the results of her/his monitoring to the Board in writing and send a copy of each report to the respondent and therapist (if applicable). The practice monitor must submit her/his first report within five days of the end of the first full month after the Board's written approval as respondent's practice monitor. The practice monitor shall submit subsequent reports within five days of the last day of each month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the practice monitor shall submit her/his reports by the fifth day of every third month (i.e., on a quarterly basis) until the practice monitoring is completed.

(vi) If the practice monitor is of the opinion that respondent is not practicing professional counseling and psychotherapy in accordance with generally-accepted professional standards of practice or with reasonable skill and safety for his clients, the practice monitor shall report her/his opinion and the basis for that opinion to the Board. The practice monitor shall make that report in writing within 48 hours of forming her/his

opinion. The practice monitor shall send a copy of such a report to the respondent and the therapist (if applicable) when s/he sends the report to the Board.

(vii) After Board approval of the practice monitor, respondent and his practice monitor shall enter into a written contract for practice monitoring. The practice monitor shall provide a copy of that written contract to the Board as part of her/his first report to the Board. The contract must contain a provision stating that the practice monitor has received a copy of this stipulation and order and the Board's file; has read these materials; and understands the duties and responsibilities s/he is undertaking as respondent's practice monitor.

(viii) Respondent must have a practice monitor approved by the Board within three months of the execution of this stipulation and order or respondent must cease the practice of professional counseling and psychotherapy until a practice monitor is approved. Respondent agrees to a summary suspension of his professional counseling license and a cease and desist order for his practice of psychotherapy if a practice monitor is not approved by the Board within three months of the execution of this stipulation and order.

(ix) Respondent or his practice monitor may terminate the monitoring relationship on written notice to the other and the Board not less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of such termination, respondent cannot practice professional counseling and psychotherapy without first obtaining another Board-approved practice monitor, who shall conduct her/his monitoring and report to the Board in accordance with this stipulation and order.

(x) Respondent cannot practice professional counseling or psychotherapy without a practice monitor.

c. Respondent cannot supervise or consult with other persons for the purpose of those other persons providing psychotherapy, as defined in C.R.S. §12-43-701(9), to clients unless respondent's supervision or consultation is monitored in accordance with 8b.

d. Should respondent's practice monitor determine that a mental status evaluation should be conducted as provided in 8b(i), respondent shall be examined by the a Board-approved therapist ("therapy evaluator") to determine his mental status and whether he should undergo therapy. As part of this mental status evaluation the therapy evaluator shall be provided the Board's file and pertinent information on this case. Respondent agrees to provide the therapy evaluator with any medical or psychological information requested by the therapy evaluator as part of the

evaluation. The therapy evaluator shall provide a written report to the Board setting forth the nature of the evaluation conducted with findings, recommendations on whether respondent should undergo therapy, and a determination of whether respondent can practice professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice. Should the therapy evaluator recommend that respondent does not need to undergo therapy, and the Board accepts this recommendation, all other requirements of this paragraph 8d shall not apply to respondent. Should the therapy evaluator recommend that respondent undergo therapy, and the Board accepts this recommendation, respondent shall undergo therapy with an individual approved by the Board ("therapist") who both conducts therapy and reports to the Board in writing in accordance with this stipulation and order as follows:

(i) The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once every week, unless otherwise approved by the Board based on recommendations of the therapist.

(ii) The therapist shall report to the Board in writing both the progress of the therapy and whether or not respondent is able to practice professional counseling and psychotherapy with reasonable skill and safety to his clients and in accordance with generally accepted standards of practice, and must send a copy of each report to the practice monitor and respondent. The therapist must submit her/his first report by the fifth day of the month following the first full month of the therapy after this order takes effect. The therapist shall submit subsequent reports by the fifth day of every month thereafter (i.e., on a monthly basis) for the first twelve reports. After the submission of the first twelve reports, unless otherwise ordered by the Board, the therapist shall submit reports by the fifth day of every third month thereafter (i.e., on a quarterly basis).

(iii) In the first report, the therapist shall state that s/he has received and read a copy of this stipulation and order, and the Board's file and must state that s/he understands the duties and responsibilities s/he is undertaking as respondent's therapist.

(iv) If, at any time, the therapist is of the opinion that respondent is practicing professional counseling and psychotherapy in a manner which does not meet the generally accepted standards of practice or has a physical or mental disability which renders him unable to treat with reasonable skill and safety to his clients or which may endanger the health or safety of persons under his care, the therapist shall report such opinion and the reasons for that opinion to the Board. The therapist shall make that report, in writing, within 48 hours of

forming her/his opinion. The therapist shall send a copy of such report to the practice monitor and respondent when s/he sends the report to the Board.

(v) Either respondent or his therapist may terminate the therapeutic relationship on written notice to the other and the Board no less than 30 days before the date of termination. The notice shall state the reason for the termination. In the event of termination, respondent agrees not to practice professional counseling and psychotherapy without first obtaining another Board-approved therapist, who shall conduct therapy with respondent and report to the Board in accordance with this stipulation and order.

(vi) Respondent cannot practice professional counseling or psychotherapy during the period of probation if he is not undergoing therapy in accordance with this Stipulation and Order.

e. Respondent shall complete a minimum of sixty (60) contact hours of Board-approved graduate level education in the areas of boundary/dual relationship issues and other legal/ethical issues related to the practice of professional counseling and psychotherapy in Colorado. Attendance at an approved jurisprudence workshop shall be required as part of the education requirement. Respondent shall complete at least twenty hours of education in the first year of probation and at least twenty hours of education in the second year of probation.

(e) Respondent will not treat any client(s) that is diagnosed with or displays symptoms that lead the respondent or her practice monitor to determine that the client's problems include issues that are beyond respondent's training, experience or competence. Should a new client seek psychotherapy services from respondent and she or her practice monitor determines (when the client initially seeks treatment or at any time after treatment is commenced) that the client has problems that are beyond respondent's training, experience or competence as part of the client's treatment concerns, respondent will refer that client to another practitioner for psychotherapy treatment and terminate any therapeutic relationship.

f. Respondent must pay all costs or expenses incurred for the evaluation, practice monitoring, therapy evaluation, therapy (if applicable), education and any other expenses incurred in fulfilling the terms of this stipulation and order.

g. Respondent is responsible for the reports due under this stipulation and order and must take reasonable steps to assure that his practice monitor and therapist (if applicable) report to the Board in accordance with this stipulation and order.

h. Following the Board's written approval of respondent's practice monitor, respondent shall provide written notification to each client to whom he is currently providing professional counseling services and psychotherapy and any client who begins or resumes receiving professional counseling services and psychotherapy after such date, notifying the client that respondent's practice of professional counseling and psychotherapy is monitored and providing the name, address, and telephone number of respondent's practice monitor. Such notification may be provided in a mandatory disclosure statement. Respondent's failure to provide such notification, may be construed as a violation of this Stipulation and Order. The practice monitor shall indicate in the her/his reports that such written notifications have been made.

i. If respondent is not providing professional counseling services or psychotherapy to clients as of the effective date of the order, he must file with the Board a written statement that he has no professional counseling or psychotherapy clients.

j. During the pendency of this order respondent agrees that he will provide permission to and allow his evaluator, practice monitor, therapy evaluator, and/or therapist (if applicable) to provide medical or psychological records or information to the Board in the event the evaluator, practice monitor, therapy evaluator, and/or therapist (if applicable) determines that he is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders him unable to treat clients with skill and safety or which may endanger the health or safety of persons under his care. As part of this stipulation and order respondent explicitly waives his right to maintain confidentiality of medical and psychological records and information provided to his evaluator, practice monitor, therapy evaluator, and/or therapist (if applicable) if the one or more of those persons determines that he is not practicing professional counseling and psychotherapy in accordance with generally accepted standards of practice or has a physical or mental disability which renders him unable to treat with skill and safety for his clients or which may endanger the health or safety of persons under his care.

9. The Board will review the status of respondent prior to the completion of three years of probation. Respondent's probationary period is subject to continuation, amendment, or revision if the Board, in the reasonable exercise of its discretion, determines that such action is necessary to assure that respondent will practice professional counseling and psychotherapy with skill and safety for his clients and in accordance with generally accepted standards of practice.

10. Any violation of this stipulation and order or any report from the practice monitor or the therapist (if applicable)

that the Board deems to be unfavorable to respondent shall, in the discretion of the Board, constitute grounds for disciplinary action or other legal action pursuant to C.R.S. §§12-43-701 to 12-43-711. This stipulation and order shall be admissible as evidence in any proceeding or hearing held to determine whether respondent complied with this stipulation and order and/or C.R.S. §§12-43-701 to 12-43-711, and at any subsequent inquiry related to licensure of respondent.

11. If a violation of this stipulation and order is proven after hearing, the Board may take into consideration all provisions, terms, and conditions of this stipulation and order prior to taking any action pursuant to and authorized by C.R.S. §§ 12-43-701 to 12-43-711. The requirements of this stipulation and order shall continue in effect throughout any disciplinary or judicial proceeding.

12. All time periods and obligations stated in this stipulation and order run only while respondent is engaged in the practice of professional counseling and psychotherapy in Colorado under the monitoring of a Board approved practice monitor and treatment of a Board-approved therapist (if applicable), they are tolled and suspended at all other times.

13. In the event respondent discontinues the practice of professional counseling and psychotherapy in Colorado, he shall notify the Board, in writing, within thirty (30) days of ceasing practice. The notification shall include the date on which he stopped practicing and his new address if he relocated.

14. In the event respondent resumes his practice of professional counseling and psychotherapy in Colorado, he shall notify the Board in writing within thirty (30) days of the resumption of the practice of professional counseling and psychotherapy in Colorado. Such notification shall include his address and the date on which he resumed practice.

15. As used in this stipulation and order, "engaged in the practice of professional counseling," "practice of professional counseling," "professional counseling treatment," and "professional counseling services," have the same meaning as "professional counseling," as defined in C.R.S. §12-43-601(4). The terms "psychotherapy services", "practice of psychotherapy", and "engaged in the practice of psychotherapy" have the same meaning and scope as the term "psychotherapy" as defined in C.R.S. §12-43-201(9).

16. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

17. The Board order resulting from this stipulation

and order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §12-43-705; §24-4-105; and the Board's rules.

18. No agreement, understanding, representation, or interpretation not contained in this stipulation and order may be used to vary or to contradict its terms.

19. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Board-construed or judicially-construed parts of the stipulation and order as if they were part of the original stipulation and order.

20. This stipulation and order is a public record.

21. This stipulation and order shall take effect on acceptance and signature by the Board ("effective date of the order").

Michael R. Gismondi, M.A., LPC
MICHAEL R. GISMONDI, M.A., LPC
Respondent

Subscribed and sworn to before me in the City and County of Denver, State of Colorado, this 30th day of July 1996.

[Signature]
NOTARY PUBLIC

My Commission expires:

2-14-97

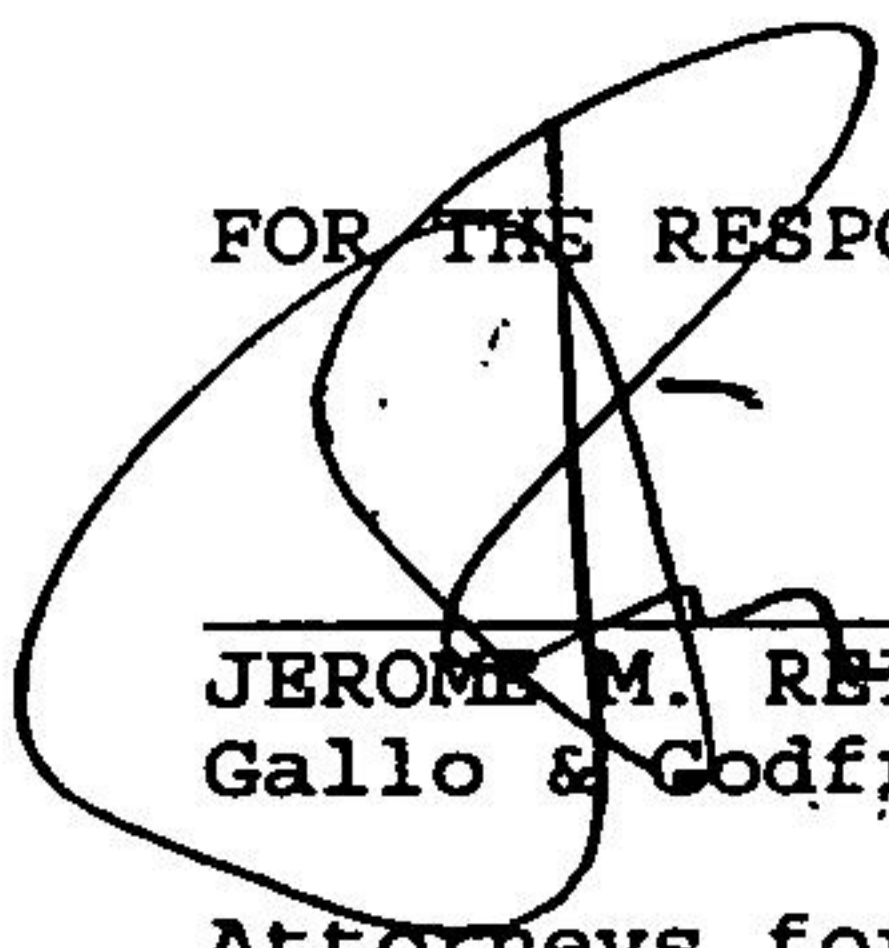
ACCEPTED, SIGNED, AND ORDERED this 8th day of August,
1996.

COLORADO STATE GRIEVANCE BOARD


By: DANIEL R. ROBINSON
Chair

APPROVED AS TO FORM

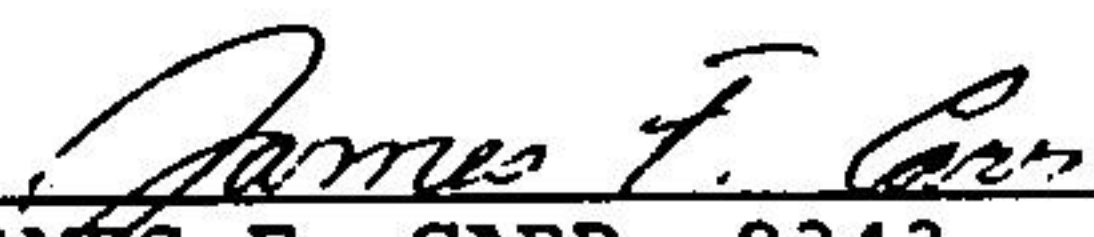
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